

**BEFORE THE
PUBLIC SERVICE COMMISSION
OF SOUTH CAROLINA
DOCKET NO. _____**

Application of	)	
	)	
Gigapower, LLC	)	
	)	
for a Certificate of Public	)	APPLICATION
Convenience and Necessity to	)	
Provide Competing Local Exchange	)	
and Interexchange	)	
Telecommunications Services in the	)	
State of South Carolina and for	)	
Alternative and Flexible Regulation	)	

Gigapower, LLC (“Gigapower” or “Applicant”), by undersigned counsel and pursuant to South Carolina Code Sections 58-9-280 and 58-9-310, and the rules and regulations of the Public Service Commission of South Carolina (“Commission”), hereby request the issuance of a Certificate of Public Convenience and Necessity (“CPCN”) to Applicant to provide facilities-based local exchange and interexchange telecommunications services throughout the State of South Carolina.

Further, pursuant to S.C. Code §58-9-585 and the general regulatory authority of the Commission, Applicant also requests that the Commission regulate its interexchange service offerings as described below in accordance with the principles and procedures established for alternative regulation in Commission Order Nos. 95-1734 and 96-55 in Docket No. 95-661-C, and as modified by Commission Order No. 2001-997 in Docket No. 2000-407-C. Applicant also requests flexible regulation for its local exchange telecommunications services in accordance with procedures authorized in Order No. 98-165 in Docket No. 97-467-C.

Applicant submits the following information in support of its Application.

I. INTRODUCTION

A. The full name, address, and contact information for Applicant:

Gigapower, LLC
311 S. Akard St., 21st Floor
Dallas, TX 75202
Tel: 210-332-3160

The contact person and address for Applicant is:

Thomas E. Grace
General Counsel, Chief Compliance Officer, and Acting Secretary
Gigapower, LLC
311 S. Akard St., 21st Floor
Dallas, TX 75202
Tel: 210-332-3160
thomas.grace@gigapower.com

B. Correspondence concerning this Application should be directed to:

Scott Elliott
Elliott & Elliott, P.A.
1508 Lady Street
Columbia, SC 29201
Tel: 803-771-0555
selliott@elliottlaw.us

With a copy to:

Andrew C. Emerson
PORTER WRIGHT MORRIS & ARTHUR LLP
41 S. High St.
Columbus, OH 43214
aemerson@porterwright.com

C. In support of this Application, the following exhibits are attached hereto:

Exhibit A – Formation Documents

Exhibit B – Authority to Transact Business

Exhibit C – Proposed Tariff

Exhibit D—Management Biographies

II. **DESCRIPTION OF THE APPLICANT**

A. **General Information**

Applicant is a Delaware Limited Liability Company formed on February 14, 2022. Applicant is (a) 0.5% owned by Infrastructure Endeavors Holdings, LLC, a Delaware Limited Liability Company that is a direct, wholly-owned subsidiary of AT&T Inc., (b) 49.5% owned by Teleport Communications America, LLC, a Delaware Limited Liability Company that is a direct, wholly-owned subsidiary of AT&T Inc., and (c) 50% owned by BGIF IV Neon Acquisition LP, a Delaware Limited Partnership, which is part of a fund managed by BlackRock, Inc.'s diversified infrastructure business. A copy of Applicant's formation documents is attached hereto as **Exhibit A**. A copy of Applicant's Certificate of Authority to Transact Business as a foreign corporation in South Carolina is attached hereto as **Exhibit B**.

B. **Description of Proposed Services**

Applicant seeks authority to provide facilities-based local exchange and interexchange services in the state of South Carolina, specifically to provide point-to-point telecommunications services for high-speed data transport. Applicant intends to provide its services using fiber optic cable along with other equipment and facilities to originate, terminate, and amplify signals. Applicant intends to provide its services over its own facilities and proposes to build a fiber-based network in South Carolina, which Applicant plans to construct to customer locations. Applicant does not currently own or lease facilities in South Carolina but plans to construct facilities to provide its services.

Applicant will primarily serve enterprise and carrier customers. Applicant does not have plans to provide retail switched voice services, including dial-tone, to end-user customers in South

Carolina. In the event that Applicant decides to expand its services to include voice services, Applicant will seek such authority at that time. Similarly, in the event Applicant intends to offer retail residential local exchange services in the future, Applicant will meet the bond requirements of S.C. Code Ann. Regs. 103-607 (or seek an appropriate waiver of same) at that time.

Applicant will comply with all applicable Commission rules, regulations and standards, and will provide safe, reliable and high-quality telecommunications services in South Carolina.

Applicant has not yet entered into or requested interconnection/resale agreements in South Carolina as such agreements are not required to provide the services it will offer as described above.

Applicant's proposed tariff, setting forth the terms, conditions, rates, charges and regulations pursuant to which Applicant proposes to provide regulated telecommunications service is provided as **Exhibit C**.

C. Customer Service

Applicant's planned service offerings will meet or exceed the Commission's quality of service requirements. In addition, connectivity of Applicant's network will not impair the statewide public switched network. Applicant will perform network and equipment maintenance necessary to ensure compliance with any applicable quality of service requirements; will comply with all applicable Commission rules, regulations and standards; and will provide safe, reliable and high-quality telecommunications services within South Carolina. Customers with complaints or inquiries should contact the Company via email at customersupport@gigapower.com. Customer support will be available twenty-four (24) hours per day, seven (7) days per week to ensure the prompt handling of customer inquiries and complaints. Applicant will provide customers with high quality telecommunications services

and maintain dedicated staff focused on customer support. Applicant will work with each customer to customize services for their specific needs, and each customer will have their own service agreement, which will also lend to the specificity of their unique business.

III. QUALIFICATIONS OF APPLICANT

Applicant possesses the requisite financial, technical and managerial capabilities to operate as a competitive telecommunications provider as described in further detail below.

A. Financial Qualifications

Applicant possesses the requisite financial resources to provide telecommunications services in the State of South Carolina. Given that Applicant, as a newly-formed company, does not have historical financial statements, for purposes of this Application, Applicant will rely on the financial statements of its indirect parent owners, AT&T Inc. and BlackRock, Inc., to demonstrate Applicant's financial qualification to operate within the State of South Carolina. AT&T Inc.'s annual report can be found at: <https://investors.att.com/financial-reports/annual-reports/2022>. BlackRock, Inc.'s annual report information can be found at: <https://ir.blackrock.com/financials/annual-reports-and-proxy/default.aspx>. As shown therein, Applicant is financially qualified to operate within the State of South Carolina.

B. Technical and Managerial Qualifications

Applicant has the managerial and technical qualifications necessary to provide the proposed services in South Carolina. Applicant is managed by a highly skilled team with substantial expertise and experience. Biographies of key management personnel of Applicant, who are responsible for the Applicant's operations, are attached as **Exhibit D**. These biographies reflect management's substantial communications industry experience and expertise and demonstrate that the Applicant possesses significant managerial and technical

expertise operating a variety of communications services across multiple jurisdictions. Thus, Applicant possesses the managerial and technical qualifications necessary to operate as a competing local exchange and interexchange telecommunications company in South Carolina, consistent with the Commission's requirements. Applicant will not have employees located in South Carolina, rather operations will be overseen by employees located at Applicant's headquarters in Texas. The key officers of Applicant are as follows:

Officers:

Bill Hogg, *CEO*

Amy Wheelus, *Chief Technology and Information Officer*

Amy Bruns, *Chief Financial Officer*

Thomas Grace, *General Counsel, Chief Compliance Officer, Acting Secretary*

Patrick Humes, *Treasurer*

Alexander Goeke, *Assistant Treasurer*

All officers may be reached at Applicant's principal place of business provided above. Neither Applicant nor any of its officers or directors have been or are currently the subject of any civil or criminal proceedings pending before any state or federal regulatory commission, administrative agency, or law enforcement agency that could adversely affect Applicant's ability to provide telecommunications services in South Carolina.

IV. WAIVERS AND REGULATORY COMPLIANCE

Applicant requests that, pursuant to 10 S.C. Reg. 103-601(3), the Commission waive the following Commission Rules:

1. 10 S.C. Reg. 103-610: Applicant requests a waiver of the requirement in Rule 103-610 that all records required under the rules be kept within the State. Applicant maintains its records at its principal offices in its operational headquarters at 311 S. Akard St., 21st Floor, Dallas, TX 75202. As such, maintaining a separate set of books and records in South Carolina for Applicant's South Carolina operations would be unduly costly and burdensome.

Applicant states that all such books and records shall be provided to the Commission Staff or the Office of Regulatory Staff (“ORS”) in a timely manner upon request, and will also make those books and records available to the Commission Staff or the ORS.

2. 10 S.C. Reg. 103-611: Applicant requests that it be exempt from any record-keeping rules or regulations that might require a carrier to maintain its financial records in conformance with the Uniform System of Accounts (“USOA”). The USOA was developed by the FCC as a means of regulating telecommunications companies subject to rate base regulation. Applicant will not be subject to rate base regulation and, therefore, should not be subject to USOA requirements. Applicant maintains its books in accordance with Generally Accepted Accounting Principles (“GAAP”).

3. 10 S.C. Reg. 103-631: Applicant requests a waiver of the requirement that it be responsible for having its customers listed in a telephone directory. To the extent that Applicant provides retail local exchange service in the future, Applicant will contract with at least one incumbent local exchange carrier (or its directory publishing affiliate) for the inclusion of the Applicant's customer databases in an appropriate directory.

4. 26 S.C. Code & Ann. Regs. 103-612.2.3: Applicant’s local exchange calling areas will initially mirror the service areas of the incumbent local exchange carriers; therefore, Applicant hereby respectfully requests a waiver of the map-filing requirement.

5. In addition to the above requested waivers, Applicant reserves the right to seek any regulatory waivers which may be required for Applicant to compete effectively in the South Carolina telecommunications market.

6. Flexible Regulation of Local Exchange Services: Applicant respectfully requests that its local exchange service offerings be regulated in accordance with procedures outlined in Order No. 98-165 in Docket No. 97-467-C.

7. Alternative Regulation of Business Service Offerings. Applicant requests that all of its interexchange business service offerings be regulated pursuant to the procedures described and set out in Commission Order Nos. 95-1734 and 96-55 in Docket No. 95-661-C, as modified by Commission Order No. 2001-997 in Docket No. 2000-407-C. It is Applicant's intent by this request to have its business services regulated in the same manner as this Commission has permitted for AT&T Communications of the Southern States, Inc. ("AT&T"). Specifically, Applicant requests that the Commission:

- a. remove the maximum rate tariff requirements for its business services, private line, and customer network-type offerings;
- b. presume that the tariff filings for these uncapped services be valid upon filing. However, if the Commission institutes an investigation of a particular filing within seven (7) days, the tariff filing would be suspended until further order of the Commission; and
- c. grant Applicant the same treatment as AT&T in connection with any future relaxation of the Commission's reporting requirements.

V. PUBLIC INTEREST CONSIDERATIONS

The grant of this Application will promote the public interest by increasing competition in the provision of telecommunications services in South Carolina. In addition to driving prices closer to costs, thereby ensuring just and reasonable rates, competition also promotes efficiency in the delivery of services and in the development of new services. These benefits work to maximize the public interest by providing continuing incentives for carriers to reduce costs while, simultaneously, promoting the availability of potentially desirable services. Applicant's operations will be overseen by a well-qualified management team with substantial

telecommunications experience and technical expertise. Applicant will provide customers high quality, cost effective telecommunications services, with an emphasis on customer service.

The grant of this Application is consistent with S.C. Code Ann. Sec. 58-9-280(B), as amended by 1996 Act No. 354. Applicant makes the following representations, as applicable:

- a. Applicant possesses the technical, managerial and financial resources sufficient to provide the services described in this application;
- b. Applicant's local exchange services will meet the service standards required by the Commission;
- c. The provision of local exchange services by Applicant will not adversely impact the availability of affordable local exchange service;
- d. Applicant, to the extent required by this Commission, will participate in the support of universally available telephone service at affordable rates;
- e. The provision of local exchange service by Applicant will not adversely impact the public interest.

VI. CONCLUSION

For the reasons stated above, Applicant respectfully requests that the Commission expeditiously grant this Application for the authority to provide all types of facilities-based and interexchange telecommunications services, grant Applicant's request for alternative and flexible regulation and the waivers described herein, and grant such other relief as is just and proper.

Respectfully submitted,

By: s/ Scott Elliott
 Scott Elliott
 Elliott & Elliott, P.A.
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 Columbia, SC 29201
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Counsel for Gigapower, LLC

June 16, 2023

LIST OF EXHIBITS

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|-----------|---|--------------------------------|
| Exhibit A | – | Formation Documents |
| Exhibit B | – | Authority to Transact Business |
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